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Case Number: 25STCV30809 Hearing Date: June 26, 2026 Dept: 224

Wright v. Solid Green Builders

TENTATIVE RULING

Plaintiff's motion for alternative service is DENIED.

Legal Standard

California Code of Civil Procedure (CCP) § 1010.6, subds. (a), (h) and Rules of Court, rule 2.251(a) generally require consent from the other party to grant electronic service. However, "When none of the four usual methods of service is available, the trial court has the discretion to authorize service by another means." (Crane v. Dolihite (2021) 70 Cal.App.5th 772, 786 (Crane).) These four usual methods include service by mail, personal service, substituted service, and service by publication. (Id.)

CCP § 413.30, sub. (a)(1) states that "If no provision is made in this chapter or other law for the service of summons, or if a plaintiff, despite exercising reasonable diligence, has been unable to effect service of the summons by any of the methods authorized under this chapter, the court in which the action is pending may, upon motion, direct that summons be served in a manner that is reasonably calculated to give actual notice to the party to be served, including by electronic mail or other electronic technology, and that proof of such service be made as prescribed by the court. (CCP § 413.30, sub. (a)(1).)

The plaintiff must establish reasonable diligence via the testimony of an individual with personal knowledge of the efforts to serve the defendant. (Olvera v. Olvera (1991) 232 Cal.App.3d 32, 42; Donel, Inc. v. Badalian (1978) 87 Cal.App.3d 327, 333 ["the question is simply whether [plaintiff] took those steps which a reasonable person who truly desired to give notice would have taken under the circumstances"].) "The term 'reasonable diligence' denotes a thorough, systematic investigation and inquiry conducted in good faith by the party or his agent or attorney. A number of honest attempts to learn defendant's whereabouts or his address by inquiry of relatives,...and by investigation of appropriate city and telephone directories, [voter registries, and assessor's office property indices situated near the defendant's last known location], generally are sufficient. These are the likely sources of information, and consequently must be searched before resorting to alternative service. Before allowing a plaintiff to resort to alternative service, the courts necessarily require him to show exhaustive attempts to locate the defendant by "set[ting] forth facts detailing all attempts to serve the defendant by each of the methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found." (CCP § 413.30, sub. (a)(2).)

The plaintiff must also establish that the alternative method of service is reasonably calculated to give actual notice to the party to be served. "An elementary and fundamental requirement of due process in any proceeding which is to be accorded finality is notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." (Mullane v. Central Hanover Bank & Trust Co. (1950) 339

U.S. 306, 314 (Mullane).) “The reasonableness and hence the constitutional validity of any chosen method may be defended on the ground that it is in itself reasonably certain to inform those affected.” (Id. at 315.) Therefore, the plaintiff must establish that the alternative method of service is likely to reach the object of the notice. (Lasselle v. Vogel (2019) 36 Cal.App.5th 127, 271 (Lasselle) [internal citations omitted].)

Discussion

Plaintiff seeks to serve Solid Green Builders by alternative service methods: (1) service by email and/or (2) service by posting and mailing to Defendant's last known business address.

In support of the Motion, Plaintiff submits: (1) a Memorandum of Points and Authorities, and (2) a Declaration of Diligence from Get'em Process Servers, by process server Tanya Hajj at 2260 Maravilla Drive, Los Angeles, CA 90068. (Plaintiff's Memo., Decl. of Diligence)

CCP § 413.30, sub. (a)(1) requires that the plaintiff establish reasonable diligence in attempting to serve the defendant through traditional methods before asking the Court to grant service through alternative methods. Here, Plaintiff's Declaration of Diligence from Get'em Process Servers, dated January 12, 2026 indicates that personal service was not executed because no person related to the case or Defendant received the documents. (Plaintiff's Mot., Decl. of Diligence).

The Declaration of Diligence from process server Tanya Hajj documented the following attempts at 2260 Maravilla Drive, Los Angeles, CA 90068: (1) December 18, 2025, at 7:10 hours; (2) December 26, 2025, at 7:06 hours; (3) January 6, 2026, at 7:12am; (4) January 7, 2026, at 18:28 hours. (Plaintiff's Mot., Decl. of Diligence).

Plaintiff has made some showing of diligence. The Court acknowledges that personal service at 2260 Maravilla Drive, Los Angeles, CA 90068 was attempted four times. The Declaration stated that on the first attempt, a couple answered the door but stated they were renting the house and were not related to the case. On the second attempt, the outside lights were on but the gate was locked and no one answered the door. On the third attempt, a man answered through the intercom bell and indicated to the process server to leave the documents in the mailbox since he was not home. On the fourth and last attempt, the same man answered through the intercom bell and again indicated to the process server to leave the documents in the mailbox. The process server indicated she could not leave the documents there. The Declaration and Plaintiff's Motion fail to clarify whether the man that answered through the intercom is related to this case. (Plaintiff's Mot., Decl. of Diligence)

Further, Plaintiff's Motion and Memorandum also states (1) that Defendant has vacated known locations to avoid service, (2) that Defendant changed the company name to “Solid Edge Remodeling” after prior business under Solid Green Builders, (3) that Defendant continues to operate the business but avoids in-person contact, (4) that the business maintains and uses the email address , and (5) that the combination of these allegations demonstrates intentional evasion of service. These statements are conclusory. The Motion does not identify which specific databases, directories, or public records were searched, if any, to find the email address, and Defendant's alleged business name. The court cannot determine whether other methods of service, such as substitute service or service by mail, would be feasible based on unsupported statements. (Plaintiff's Mot., Plaintiff's Memo.)

As a result, the diligence showing contains gaps the court is unable to overlook on the present record. There is no showing of whether the Plaintiff attempted to search for a different address. There is no proof of inquiry of neighbors, attempt at substituted service under CCP § 415.20, attempt to obtain phone numbers or other information from the man on the intercom bell, or other follow-up reasonably suggested by that observation. Based on the foregoing reason, the Court finds that Plaintiff has not made a sufficient showing of reasonable diligence as required by CCP § 413.30, sub. (a)(2). (Plaintiff's Mot., Plaintiff's Memo., Decl. of Diligence)

We now turn to whether service by e-mail and/or service by posting and mailing to Defendant's last known business address are reasonably calculated to give actual notice to Defendant. Plaintiff's Motion and Memorandum state that email is reasonably calculated to give Defendant notice “[g]iven Defendant's business operations and electronic communications.”

Moreover, Plaintiff states that service by posting and mailing, combined with service by email, is reasonably calculated because "[t]his combination method further ensures due process and increases the likelihood of actual notice." (Plaintiff's Mot., Plaintiff's Memo.)

Plaintiff cite federal cases to support its position that email service is proper. In a further application, Plaintiff may explain why federal cases are binding on this issue.

Here, Plaintiff's Motion and Memorandum states that "[t]he business maintains and uses the email address ." This is conclusory. The Motion does not identify any exchanges with the Defendant that indicate that emails are received at this address, or that Defendant uses this email regularly as part of their course of business. Beyond the statements provided in the Memorandum, Plaintiff does not provide any admissible evidence to support these statements. Nor does Plaintiff cite to any California law.

Ultimately, Plaintiff asks the Court to grant alternative service by posting and mailing to Defendant's last known business address. However, Plaintiff does not clarify which address they are referring to, or the means they utilized to conclude said address is Defendant's last known business address. Therefore, the Court finds that Plaintiff failed to establish that service by e-mail and/or service by posting and mailing are reasonably calculated to provide notice to Defendant, as required by CCP § 413.30, sub. (a)(1).

Based on the foregoing, Plaintiff's motion for alternative service is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.